

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY,
QUETTA

PRC APPEAL No.30/2026

M/S Khan & Brothers
Through its Authorized Representative Raz Muhammad,
Holding CNIC No.54303-2029885-3
Office at Shop No.04, By pass road Pishin.

.... Appellant

Versus

1. Local Government Department, Through its Secretary office at civil Secretariat, Zarghoon road Quetta.
2. Chief officer Municipal corporation Pishin, District Pishin
3. Grievance Redressal Committee, through its Chairman Division Quetta.
4. M/s A.H.S Brothers
5. Assistant Engineer Municipal Corporation Pishin, District Pishin.

.... Respondents

Quorum

- | | |
|----------------------------|--------------------|
| 1. Habib-Ur-Rehman Jamot | Chairman PRC |
| 2. Iftikhar Ahmed Sanjrani | Member PRC |
| 3. Engr. Junaid Shah | Member PRC |
| 4. Iftikhar Ahmed Mir | Private Member PRC |
| 5. Syed Muheebullah | Private Member PRC |

APPEAL UNDER RULE-56-A OF THE BALUCHISTAN PUBLIC PROCUREMENT RULES, 2014 AND ALL OTHER ENABLING PROVISIONS OF LAW AGAINST TSE NO. 252609859543 BY THE MUNICIPAL CORPORATION PISHIN AT DISTRICT PISHIN OF LOCAL GOVERNMENT DEPARTMENT GOVERNMENT OF BALUCHISTAN

For the Appellant: Raz Muhammad

For the Respondents No. 3 Representative

For the Respondents No. 5 In Person

DECISION Dated 24.02.2026

1. BRIEF FACTS

The Appellant is a contractor duly registered with the Pakistan Engineering Council (PEC), Federal Board of Revenue (FBR), and Baluchistan Revenue Authority (BRA). The Municipal Corporation Pishin (Procuring Agency) invited bids under PRQ No. 271/18-09-2025 through Single-Stage Two-Envelope Procedure for various works, including TSE No. 252609859543 titled "Construction of PCC Drain at Worker Member Area Municipal Corporation Pishin", with an estimated cost of PKR 2,100,000.

The Appellant submitted its bid within the stipulated time. Upon opening and evaluation of technical bids on 03-10-2025, the Procuring Agency declared six out of eight bidders, including

the Appellant, as non-responsive on the grounds of unsigned documents, non-submission of similar assignments, absence of declaration of non-blacklisting and genuine documents, and lack of agreement with terms and conditions.

Subsequently, the financial bids were opened on 31-12-2025, and Respondent No. 4 was declared the successful bidder.

Aggrieved by the technical disqualification, the Appellant filed a complaint before the Complaint Redressal Committee (CRC) on 02-01-2026, which was rejected vide order dated 08-01-2026 on the ground of limitation, without adjudicating the merits of the complaint. The Appellant thereafter filed the present appeal before this Committee under Rule 56-A of the BPPRA Rules, 2014.

2. APPELLANT'S CONTENTIONS

The Appellant, through its authorized representative, contended as follows:

- i. That the disqualification of the Appellant was arbitrary, unlawful, and contrary to the eligibility criteria prescribed in the bidding documents.
- ii. That the Procuring Agency failed to specify clearly which technical documents were required to be stamped and signed, rendering the evaluation criteria ambiguous and violative of Rule 34 of the BPPRA Rules, 2014.
- iii. That the Appellant had submitted the same technical documents in another tender under the same Notice Inviting Tender (NIT), which were accepted by the Procuring Agency, thereby demonstrating discriminatory and inconsistent treatment.
- iv. That the CRC erroneously rejected the complaint as time-barred despite the complaint having been filed within the prescribed timeframe under Rule 56 of the BPPRA Rules, 2014.
- v. That the Procuring Agency uploaded an incorrect evaluation report, thereby violating transparency requirements and preventing meaningful challenge to the procurement process.

The Appellant prayed that the impugned disqualification and subsequent award be set aside, the procurement process be declared mis-procurement, and appropriate remedial directions be issued

3. RESPONDENTS' CONTENTIONS

The Respondents contested the appeal and submitted as follows:

- i. That the Appellant failed to meet the mandatory eligibility criteria, including submission of similar work experience, signed and stamped documents and declaration of non blacklisting etc.
- ii. That the evaluation was conducted strictly in accordance with Rules 34 and 35 of the BPPRA Rules, 2014; and the Appellant was rightly declared non-responsive.
- iii. That the Appellant failed to comply with procedural requirements by not properly pursuing remedy before the Complaint Redressal Committee within the prescribed period, rendering the appeal incompetent.
- iv. That the evaluation process was conducted transparently, and the contract was awarded to the lowest evaluated responsive bidder in accordance with applicable rules.

The Respondents prayed for dismissal of the appeal.

4. POINTS FOR DETERMINATION

The following issues arise for determination by this Committee:

- i. Whether the Appellant fulfilled the eligibility criteria, particularly regarding similar work experience.
- ii. Whether the Procuring Agency lawfully declared the Appellant non-responsive on the basis of unsigned or unstamped documents.
- iii. Whether the requirement of non-blacklisting certificate and document formalities was clearly specified in accordance with the Rules.
- iv. Whether the complaint filed before the CRC was within limitation.
- v. Whether the Procuring Agency complied with transparency requirements, including uploading the correct evaluation report.
- vi. Whether the procurement process was conducted in accordance with the BPPRA Rules, 2014.

5. FINDINGS OF THE COMMITTEE

After hearing the parties and examining the record, this Committee records the following findings:

i. Similar Work Experience

The Procuring Agency required bidders to possess experience of similar nature works, bidder failed to provide the same, however Upon examination of the record, it is observed that the Procuring Agency too failed to apply the eligibility criteria consistently and transparently which undermines the fairness of the evaluation process.

ii. Ambiguity in Evaluation Criteria

The Procuring Agency declared the Appellant non-responsive on the basis of unsigned and unstamped documents. However, the bidding documents did not clearly specify which documents were required to be stamped and signed or the consequences of non-compliance.

Under Rule 34 of the BPPRA Rules, 2014, Procuring Agencies are obligated to formulate clear and unambiguous evaluation criteria. Failure to do so constitutes mis-procurement. The Procuring Agency's failure in this regard rendered the evaluation process legally deficient.

iii. Non-Blacklisting Certificate, Declaration of Genuine Documents, Agreement with terms and conditions:

The Procuring Agency required submission of a non-blacklisting certificate, declaration of genuine documents and agreement with terms and conditions which the bidder failed to provide, hence the procuring agency disqualified the bidder on the ground of non submission of such certificates, which is against the transparency fairness and procurement laws.

iv. Limitation and Complaint before CRC

The record establishes that the Appellant filed its complaint before the CRC on 02-01-2026, and receipt of the complaint was duly acknowledged. The CRC rejected the complaint as time-barred without providing legal justification under Rule 56 of the BPPRA Rules, 2014.

The CRC failed in computation of time for filling of grievance before CRC and decided the matter in haste by issuing a letter on 08.01.2026 . the time limitation starts from the date of uploading of the complete evaluation reports which is 30.12.2025. This Committee finds that the CRC acted arbitrarily and failed to exercise jurisdiction vested in it, thereby depriving the Appellant of lawful redress.

v. Violation of Transparency Requirements

It is admitted by the Procuring Agency that an incorrect evaluation report of some other tender was uploaded. Such conduct constitutes a serious violation of transparency obligations and undermines the integrity of the procurement process.

Uploading incorrect evaluation reports prevents meaningful review and violates fundamental principles of fairness and accountability.

DECISION

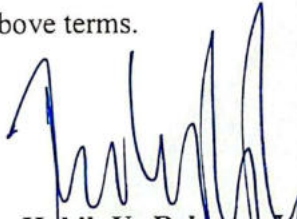
For the reasons recorded above and after careful examination of the record, submissions of the parties, and applicable provisions of the Baluchistan Public Procurement Rules, 2014, this Committee concludes that the procurement process in respect of TSE No. 252609859543 was not conducted in a transparent and lawful manner and suffered procedural irregularities and violations of the mandatory provisions of the BPPRA Rules, 2014.

The deficiencies identified in the evaluation process, ambiguity in eligibility criteria, and lack of transparency have materially affected the fairness and integrity of the procurement proceedings. Consequently, the impugned procurement process is set aside.

Accordingly, the Procuring Agency is hereby directed to **cancel the impugned procurement process and initiate fresh procurement proceedings through re-tendering**, strictly in accordance with the Baluchistan Public Procurement Rules, 2014, ensuring transparency, fairness, and equal opportunity to all eligible bidders.

The Procuring Agency shall ensure full compliance with the applicable legal framework while conducting the fresh tender process.

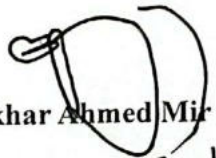
The appeal is disposed of in the above terms.

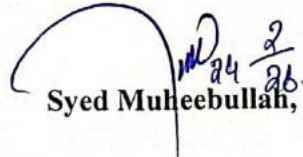

Habib Ur Rehman Jamot

24/02/2026


Iftikhar Ahmed Sanjrani
24/02/2026


Engr. Junaid Shah 24/02/26


Iftikhar Ahmed Mir
24/2/2026


Syed Muheebullah, Advocate
24/2/26